

26TRCV00452 26TRCV00452

County: los-angeles

Division: Civil Law and Motion

Department: 5

Hearing date: 2026-07-10

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=ING%2C5%2C07%2F10%2F2026

Source SHA-256: e1cc57dd3f420c2dc3b7b5093d5c375941c57b64089e012af187ef9654f29a8b

Case Number: 26TRCV00452 Hearing Date: July 10, 2026 Dept: 5

Superior Court of California

County of Los Angeles – SOUTHWEST District

Department

5

LYNN COUCH

;

Plaintiff,

vs.

save medical & aesthetic
group

, et al.;

Defendants.

Case

No.:

26TRCV00452

Hearing

Date:

July
8, 2026

Time:

8:30 a.m.

[tentative]

Order RE:

(1)

DEFENDANT SAVE MEDICAL & AESTHETIC GROUP'S
DEMURRER TO PLAINTIFF LYNN COUCH'S FIRST AMENDED COMPLAINT

MOVING PARTY: Defendant, Save Medical &
Aesthetic Group

RESPONDING PARTY: Plaintiff, Lynn Couch

(1)

Defendant

Save Medical & Aesthetic Group's Demurrer to Plaintiff Lynn Couch's First
Amended Complaint is OVERRULED pursuant to Code of Civil Procedure section
430.10.

(2)

Defendant

Save is Ordered to file an Answer on or before July 27, 2026.

The Court considers the moving
papers filed on June 2, 2026, the opposition brief filed on June 11, 2026, and
the reply brief filed on June 16, 2026.

BACKGROUND

Factual Background

On February 6, 2026, plaintiff

Lynn Couch ("Plaintiff") filed the Complaint against defendants Save Medical & Aesthetic Group ("Save"), Jinah K. Choi, Sang S. Lee, and DOES 1 through 50.

On April 16, 2026, Plaintiff filed the First Amended Complaint ("FAC") against Save, Jinah K. Choi, Sang S. Lee, and DOES 1 through 50. The FAC includes the following causes of action: (1) Medical Negligence; (2) Fraud – Concealment; and (3) Medical Battery.

On May 14, 2026, Save's counsel met and conferred with Plaintiff's counsel over the phone. (Declaration of Nicholas R. Webb ("Webb Decl."), ¶¶ 3-4.) Subsequently, on May 22, 2026, Save's counsel sent a meet-and-confer letter via email to address the alleged deficiencies identified in the demurrer. (Webb Decl., ¶¶ 3-4.) The parties were unable to resolve the issues through informal discussion, necessitating the filing of this demurrer. (Webb Decl., ¶ 5.)

Procedural Background

On June 2, 2026, Save filed the demurrer. On June 11, 2026, Plaintiff filed an opposition brief. On June 16, 2026, Save filed a reply brief.

LEGAL STANDARD

A demurrer can be used only to challenge defects that appear on the face of the pleading under attack or from matters outside the pleading that are judicially noticeable. (Blank v. Kirwan (1985) 39 Cal.3d 311, 318.) "To survive a demurrer, the complaint need only allege facts sufficient to state a cause of action; each evidentiary fact that might eventually form part of the plaintiff's proof need not be alleged." (C.A. v. William S. Hart Union High School Dist. (2012) 53 Cal.4th 861, 872.) For the purpose of testing the sufficiency of the cause of action, the demurrer admits the truth of all material facts properly pleaded. (Aubry v. Tri-City Hospital Dist. (1992) 2 Cal.4th 962, 966-967.) A demurrer "does not admit contentions, deductions or conclusions of fact or law." (Daar v. Yellow Cab Co. (1967) 67 Cal.2d 695, 713.)

A pleading is uncertain if it

is ambiguous or unintelligible. (Code Civ. Proc., § 430.10, subd. (f).) A demurrer for uncertainty may lie if the failure to label the parties and claims renders the complaint so confusing that the defendant cannot tell what he or she is supposed to respond to. (Williams v. Beechnut Nutrition Corp. (1986) 185 Cal.App.3d 135, 139, fn. 2.) However, “[a] demurrer for uncertainty is strictly construed, even where a complaint is in some respects uncertain, because ambiguities can be clarified under modern discovery procedures.” (Khoury v. Maly's of California, Inc. (1993) 14 Cal.App.4th 612, 616.)

MEET AND CONFER REQUIREMENT

Before filing a demurrer, the moving party is required to meet and confer in person, by telephone, or via video conference with the party who filed the pleading that is subject to the motion, to determine whether an agreement can be reached that would resolve the objections to be raised in the demurrer or motion to strike. (Code Civ. Proc., § 430.41, subd. (a).) The parties are to meet and confer at least five days before the date the responsive pleading is due. (Code Civ. Proc., § 430.41, subd. (a)(2).) Thereafter, the moving party shall file and serve a declaration detailing their meet and confer efforts. (Code Civ. Proc., § 430.41, subd. (a)(3).) A determination by the court that the meet and confer process was inadequate shall not be grounds to overrule or sustain a demurrer. (Code Civil Proc., § 430.41, subd. (a)(4).)

On May 14, 2026, Save's counsel met and conferred with Plaintiff's counsel over the phone. (Webb Decl., ¶¶ 3-4.) Subsequently, on May 22, 2026, Save's counsel sent a meet-and-confer letter via email to address the alleged deficiencies identified in the demurrer. (Webb Decl., ¶¶ 3-4.) The parties were unable to resolve the issues through informal discussion, necessitating the filing of this demurrer. (Webb Decl., ¶ 5.)

Consequently, the Court finds that Save sufficiently met and conferred with Plaintiff prior to filing this demurrer.

DISCUSSION

Second Cause of Action – Fraud –
Concealment

Save demurs to the second
cause of action for fraud – concealment on the grounds that (1) Plaintiff fails
to plead with the required specificity; and (2) “Plaintiff fails to adequately
allege justifiable reliance and independent fraud damages.” (Dem., pp. 6:9-10, 7:3-4.)

“The elements of fraud, which
give rise to the tort action for deceit, are (a) misrepresentation (false
representation, concealment, or nondisclosure); (b) knowledge of falsity (or
‘scienter’); (c) intent to defraud, i.e., to induce reliance; (d) justifiable
reliance; and (e) resulting damage.” (Lazar
v. Superior Court (1996) 12 Cal.4th 631, 638 (Lazar), quoting 5
Witkin, Summary of Cal. Law (9th ed. 1988) Torts, § 676, p. 778.)

The facts constituting the
alleged fraud must be alleged factually and specifically as to every element of
fraud, as the policy of “liberal construction” of the pleadings will not
ordinarily be invoked. (Lazar, supra,
12 Cal.4th at p. 645.) In alleging a
cause of action for fraud, “[t]he specificity requirement means a plaintiff
must allege facts showing how, when, where, to whom, and by what means the
representations were made, and, in the case of a corporate defendant, the
plaintiff must allege the names of the persons who made the representations,
their authority to speak on behalf of the corporation, to whom they spoke, what
they said or wrote, and when the representation was made.” (West v. JPMorgan Chase Bank, N.A.
(2013) 214 Cal.App.4th 780, 793.)
However, “to prove reliance on an omission[, the plaintiff] need only
prove that, had the omitted information been disclosed, [the plaintiff] would
have been aware of it and behaved differently.”
(Mirkin v. Wasserman (1993) 5 Cal.4th 1082, 1093.)

Here, Plaintiff contends that Choi
“is the chief financial officer, agent, and director of [Save]. [Lee] is the chief executive officer and
director of [Save]. [Choi and Lee] are
nurse practitioners providing medical services at [Save,] located in Torrance,
California.” (FAC, ¶ 3.) “[O]n or about May 7, 2025, before and
continuing thereafter, [P]laintiff presented to [Save] for cosmetic procedures,
including body fat dissolving injections in her thighs. Among other negligent acts and omissions,

defendants, and each of them, negligently performed the injections into plaintiff's thighs using improper equipment and technique, causing the injection needle to break off and became lodged in [P]laintiff's left thigh" (FAC, ¶ 9.)

Choi and Lee "intentionally failed to disclose to [P]laintiff the fact that the injection needle had broken off and was lodged in her left thigh during the injections performed that same day."

(FAC, ¶ 17.) "Plaintiff was positioned on her stomach during the procedure and could not observe the injections being performed. Plaintiff did not see the needle that was used either during or after the procedure and had no way to know that it had broken."

(FAC, ¶ 17.) "On May 9, 2025, defendants [Choi and Lee] asked [P]laintiff to return to [Save] without disclosing this material fact. Upon [P]laintiff's arrival on May 9, 2025, [Choi and Lee] asked [P]laintiff to sign a consent form and to backdate it to May 7, 2025. Defendants then performed what they represented to be additional fat-dissolving injections in Plaintiff's left thigh. Only after completing this procedure did defendants inform [P]laintiff that the needle had broken off in her left thigh during the May 7, 2025 injections." (FAC, ¶ 18.)

Plaintiff further claims: "Had [P]laintiff known this material fact, she would have behaved differently. Specifically, [P]laintiff would have sought immediate medical evaluation and treatment on May 7, 2025, to have the needle promptly located and removed by competent, qualified medical providers, before any complications such as migration, infection, or other injuries developed. Plaintiff would not have simply gone home and continued her normal activities for two days without seeking medical attention. Further, [P]laintiff would not have returned to [Save] on May 9, 2025, nor consented to any additional injections or procedures performed by [Choi and Lee.]" (FAC, ¶ 20.)

Moreover, Plaintiff contends that "[t]he injection needle migrated within [P]laintiff's body and became significantly more difficult to locate and remove. As it migrated, the needle became very painful, uncomfortable and disturbing to [P]laintiff, causing her severe pain, suffering, emotional distress, anxiety, stress, despair, mental anguish, inconvenience, and other injuries to her body, nervous system, and overall health. As a further direct and proximate result of defendants' intentional fraudulent conduct, [P]laintiff was

required to undergo multiple surgical procedures to locate and remove the migrated needle, suffering infection, prolonged recovery, multiple incisions and their corresponding scars, and other related sequelae.” (FAC, ¶ 21.)

Plaintiff’s alleged injuries include “shock and injury to [P]laintiff’s nervous system and person, all of which has caused and continues to cause [P]laintiff great mental, emotional, physical and nervous pain, suffering, anguish, fear, anxiety, and distress.” (FAC, ¶ 22.)

Save first contends that

Plaintiff’s claim is deficient because she “repeatedly lumps all Defendants together and alleges that ‘defendants’ collectively and concealed information or performed procedures.” (Dem., p. 7:1-2.) This assertion is only partially accurate. Although Plaintiff does not specify who administered the fat-dissolvent, this detail is not pertinent to this claim. The primary issue is whether Plaintiff has identified which party concealed the alleged broken needle. Plaintiff explicitly names Choi and Lee in this context. (FAC, ¶ 17.) Consequently, Save’s argument lacks merit.

Furthermore, Save contends

that “While Plaintiff identifies Choi and Lee as corporate officers, the FAC does not allege specific facts demonstrating that Save[], as a corporate entity, authorized, directed, or ratified any alleged concealment regarding the retained needle. Nor does the FAC allege any corporate policy, directive, or entity-level decision concerning nondisclosure, or facts demonstrating that Save [] independently possessed knowledge of and approved the alleged concealment. Such respondeat superior allegations are insufficient to satisfy the heightened pleading standard applicable to fraud claims against a corporate defendant.”

(Dem., p. 7:2-8.) However, the

Court observes that Save does not cite any supporting case law or statute to substantiate its assertion regarding the necessity for such detailed allegations. Save references Archuleta

v. Grand Lodge of Intern. Ass’n of Machinists and Aerospace Workers, AFL-CIO (1968)

262 Cal.App.2d 202, 208-209, and Tarmann v. State Farm Mut. Auto. Ins. Co.

(1991) 2 Cal.App.4th 153, 157-158, but neither case supports this argument. Neither case mandates that Plaintiff must provide “facts demonstrating that [the defendant], as a corporate entity, authorized, directed, or ratified any alleged concealment” nor do they stipulate that Plaintiff must “allege any corporate policy, directive, or entity-level decision concerning nondisclosure, or facts demonstrating that [the corporate defendant] independently possessed knowledge of and approved the alleged concealment.” Moreover, neither case addresses the principle of respondeat superior.

The focal question is whether Plaintiff alleges that Lee and Choi had the authority to speak or conceal on behalf of Save. Plaintiff meets this requirement by asserting that Choi serves as the CEO, agent, and director of Save, while Lee also holds the position of CEO and director of Save. (FAC, ¶ 3.)

Save further contends that “Plaintiff does not allege with specificity the particular statements or omissions attributable to the corporate entity, the manner in which such statements were communicated, or facts showing that Save [] itself engaged in intentional fraudulent conduct separate and apart from the acts allegedly undertaken by the individual providers[.]” (Dem, p. 7:11-15.) Again, Save fails to provide any supporting case law or statutes that prove Plaintiff must include this information. Save argues that “the complaint must allege facts showing why the corporation itself is liable for those acts” under *Committee On Children’s Television, Inc. v. General Foods Corp.* (1983) 35 Cal.3d 197, 216. (Reply, p. 3:16-18.) However, this citation does not discuss corporations. Additionally, as Plaintiff points out, “A corporation, as an artificial entity, cannot of itself perform or refrain from performing an act; only its officers and agents can.” (Opp., p. 3:19-20, quoting *Signal Oil & Gas Co. v. Ashland Oil & Refining Co.* (1958) 49 Cal.2d 764, 779.)

Save contends that “even assuming Plaintiff sufficiently alleges reliance as to the individual providers, the FAC still fails to allege facts showing that Plaintiff relied on any specific concealment attributable to [Save] itself. The FAC does not identify any particular statement, omission, or concealment made by Save [] as a corporate entity upon which Plaintiff allegedly relied, nor does it allege facts showing that Save [] itself communicated any information to Plaintiff through an authorized corporate representative.” (Dem., p. 8:11-16.) Similarly, Save asserts that “the FAC does not allege facts demonstrating that Plaintiff’s alleged reliance arose from any corporate policy, directive, or entity-level decision by Save” and “contains no factual allegations establishing that Save [] authorized, directed, or ratified any alleged concealment that purportedly caused Plaintiff to return for further treatment on May 9, 2025.” (Dem., p. 8:19-23.) Again,

Save provides no case law that indicates Plaintiff must allege that Save itself made any specific statement, omission, or concealment. Plaintiff must demonstrate that she relied upon a statement or concealment made by an individual authorized to speak on behalf of Save, and that such reliance resulted in damages. Plaintiff has fulfilled this requirement.

Plaintiff contends that Lee and Choi, executives and directors of Save, concealed the broken needle that became lodged in her thigh. (FAC, ¶¶ 3, 17-18.) Plaintiff further alleges that the needle migrated, “causing her severe pain, suffering, emotional distress, anxiety, stress, despair, mental anguish, inconvenience, and other injuries to her body, nervous system, and overall health.” (FAC, ¶ 21.) Consequently, she had to “undergo multiple surgical procedures to locate and remove the migrated needle, suffering infection, prolonged recovery, multiple incisions and their corresponding scars, and other related sequelae.” (FAC, ¶ 21.)

Furthermore, Plaintiff contends that she would have pursued “immediate medical evaluation and treatment on May 7, 2025, to have the needle promptly located and removed by competent, qualified medical providers, before any complications such as migration, infection, or other injuries developed. Plaintiff would not have simply gone home and continued her normal activities for 2 days without seeking medical attention.” (FAC, ¶ 20.)

Accordingly, Save’s demurrer with respect to the second cause of action for fraud – concealment (and scienter) is OVERRULED.

Third Cause of Action – Medical Battery

Save demurs to the third cause of action for medical battery on the grounds that (1) “Plaintiff fails to allege sufficient facts to state a claim for medical battery[.]” (Dem., p. 9:3.)

“A battery is a violation of an individual’s interest in freedom from intentional unlawful, harmful or offensive unconsented contacts with his or her person. [Citation.] The element of lack of consent to the particular contact is an essential element of battery. [Citation.]” (Rains v. Superior Court (1984) 150 Cal.App.3d 933, 938, internal

citations omitted.)

“Where a doctor obtains

consent of the patient to perform one type of treatment and subsequently performs a substantially different treatment for which consent was not obtained, there is a clear case of battery.”

(Cobbs v. Grant (1972) 8 Cal.3d 229, 239.) “The battery theory should be reserved for those circumstances when a doctor performs an operation to which the patient has not consented. When the patient gives permission to perform one type of treatment and the doctor performs another, the requisite element of deliberate intent to deviate from the consent given is present. However, when the patient consents to certain treatment and the doctor performs that treatment but an undisclosed inherent complication with a low probability occurs, no intentional deviation from the consent given appears; rather, the doctor in obtaining consent may have failed to meet his due care duty to disclose pertinent information. In that situation the action should be pleaded in negligence.” (Id. at pp. 240-241.)

Here, Plaintiff contends that “On

May 9, 2025, [P]laintiff was told by defendants [Choi and Lee] that they were going to perform additional fat-dissolving injections in her thighs. Unaware of the broken needle lodged in her left thigh since May 7, 2025, [P]laintiff consented to the additional injections. On information and belief, the purported additional injections were a pretext for defendants [Choi and Lee] to go re-enter [P]laintiff’s left thigh and search for the broken needle without having to first inform [P]laintiff of its presence, and to subsequently document the incident in the medical records as though it occurred on May 9, 2025, rather than 2 days earlier on May 7, 2025. Accordingly, defendants [Choi and Lee] performed a substantially different medical procedure than that which plaintiff consented to – namely, an exploratory attempt to locate a retained foreign object rather than the administration of additional fat-dissolving injections – by deceiving [P]laintiff regarding the true reason for and nature of the medical procedure performed on her left thigh on May 9, 2025.” (FAC, ¶ 26.)

Save contends that the claim

is deficient because “[t]he pleading [] contains no specific factual allegations showing that Save [] itself engaged in any intentional unauthorized touching, directed such conduct, or otherwise committed acts sufficient to

impose liability for an intentional tort.”

(Dem., p. 9:7-11.) This argument

lacks persuasive force, as a corporate entity such as Save cannot itself commit battery but may nonetheless be held accountable for intentional torts perpetrated by its executives and agents, including Choi and Lee. (FAC, ¶ 3.)

Save further asserts that “the

FAC pleads no specific factual allegations” indicating that “the May 9, 2025, procedure was not actually additional fat-dissolving injections, but rather a concealed exploratory attempt to locate the retained needle fragment.” (Dem., p.

9:14-16.)

However, as indicated, Plaintiff

contends that although she consented to additional injections, she was subjected to an entirely different procedure, an exploratory surgery or procedure aimed at removing the broken needle, instead of receiving the fat-dissolving injections. (FAC, ¶ 26.) The Court find these facts sufficient to survive the demurrer.

Finally, Save contends that

this constitutes a negligence claim rather than a medical battery because “Plaintiff expressly alleges that she consented to additional injections in her thighs on May 9, 2025[.]” and “[t]he alleged conduct involved the same anatomical site, the same general type of needle- or incision-based intervention, and occurred during the very procedure for which Plaintiff admittedly provided consent.” (Dem., pp. 10:15, 18-20.)

As previously noted, Plaintiff

contends that she did not receive the injections but rather underwent an exploratory procedure. (FAC, ¶ 26.) Based on these allegations, the exploratory procedure did not fall within the scope of the procedure to which Plaintiff consented; it constituted a distinct procedure to which she did not provide consent. The similarities in the anatomical site or the nature of the needle- or incision-based intervention are not pertinent to this matter. Plaintiff did not consent to this specific procedure.

Accordingly, Save’s demurrer with

respect to the third cause of action for medical battery is OVERRULED.

ORDERS

1) Defendant

Save Medical & Aesthetic Group's Demurrer to Plaintiff Lynn Couch's First Amended Complaint is OVERRULED.

2) Defendant

Save is ordered to file an answer on or before July 27, 2026.

3) Save

is ordered to provide notice of this Court's ruling.

IT IS SO ORDERED.

DATED: July 8, 2026

Tamara

Hall

Judge

of the Superior Court